

Defendants do not dispute this conclusion. However, they request clarification regarding whether the \$425,000 loan from Ojeda was received prior to the valuation date since only liabilities as of that date should be included in the valuation. In her declaration dated April 14, 2026, Ojeda state, “I have loaned the Company over \$425,000 after the valuation date to cover the Company’s on-going expenses, such as real estate leases, payroll to doctors and employees, and medical supplies.” (Ojeda Decl., ¶ 6.) In her Supplemental Addendum to Conclusion of Value, the Appraiser clarified that the original valuation included the \$425,000 based on information received from management. (Supp. Decl. of Hallstrom, Ex. A.) However, subsequent information provided by counsel indicates that \$132,179 was advanced prior to the valuation date with the additional advance occurring after. (Id.) The Appraiser indicated that this clarification does affect the conclusion and Resilience remains insolvent even if only \$139,179 from Ojeda is included in the liabilities. (Id.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504523	BROWN VS EQUITY LIFESTYLE PROPERTIES, INC.	ANTI-SLAPP MOTION

Tentative Ruling: Defendant MHC Thousand Trails Limited Partnership’s ANTI-SLAPP Motion is denied without prejudice.

Plaintiff is ordered to file an amended complaint within 30 days.

The Legislature enacted the anti-SLAPP procedure due to “a disturbing increase in lawsuits brought primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances.” (C.C.P. § 425.16(a).) It is a two-step process where the moving defendant has the burden to first establish that the allegations or claims arise from protected activity, and then the plaintiff has the burden to demonstrate that the claim has minimal merit. (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.)

“SLAPP law is silent as to the issue of amendment.” (*Oakland Bulk v. Oversized Terminal, LLC v. City of Oakland* (2020) 54 Cal.App.5th 738, 750.) However, “the purpose of the anti-SLAPP statute is to unmask SLAPP actions masquerading as ordinary lawsuits and to resolve them expeditiously.” (*Ibid.*)

In *Oakland Bulk*, the defendant filed a demurrer and motion to strike that were set for hearing weeks before the scheduled hearing date for its SLAPP motion. (*Oakland Bulk, supra*, 54 Cal.App.5th at 751.) The appellate court rejected the defendant’s argument that “the preferred procedure is to decide the SLAPP motion first, before the demurrer.” (*Ibid.*) Rather, the appellate court held that the trial court judge did not err in allowing plaintiffs to amend their complaint and defer ruling on the SLAPP motion, which would require analyzing “what would have been a superseded complaint,” until another motion was forthcoming. (*Id.* at 750-751.) The appellate court concluded that “proceeding in

such fashion would promote judicial efficiency and economy—and not thwart any purpose of the anti-SLAPP law.” (*Id.* at 751.)

The facts in *Oakland Bulk* reflect the procedural history of the case at hand. Although MHC TT LP attempted to file its anti-SLAPP motion earlier, the motion was ultimately not filed until five days before the hearing on Defendants’ demurer and motion to strike. The Court sustained the demurrer in part, and allowed Plaintiff leave to amend the SAC. Proceeding with the anti-SLAPP motion on the SAC now would be analyzing what will soon be a superseded complaint, as in *Oakland Bulk*.

Even if the Court wished to proceed with the motion, doing so would prejudice Plaintiff. Although Plaintiff previously filed an opposition on the merits of the anti-SLAPP motion (likely not realizing that the initial motion had been rejected for filing by the Court Clerk), Plaintiff’s opposition was filed before the Court sustained the demurrer to the SAC. As noted above, seven causes of action survived the demurrer against MHC TT LP. The resubmitted anti-SLAPP motion, filed on May 21, 2026, is currently unopposed.

Accordingly, Plaintiff has not specifically addressed the seven remaining causes of action on their merits. Because the party opposing the anti-SLAPP motion has the burden of proof to establish a probability that they will prevail on whatever claims are asserted against the defendant under C.C.P. § 425.16(b), Plaintiff will be prejudiced if the Court proceeds with the anti-SLAPP motion on the merits of the seven remaining causes of action.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505408	THE CHANG FAMILY TRUST, BY AND THROUGH ITS CO-TRUSTEES, JOHN H. CHANG AND AILEEN HSIAOLIN WANG	APPLICATION FOR RIGHT TO ATTACH ORDER

Tentative Ruling: Hearing for the Right to Attach is continued to 6/17/27.

Request to narrowly seal Defendants’ opposition is granted.

“The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. [Citation.] Substantive courtroom proceedings in ordinary civil cases, and the transcripts and records pertaining to these proceedings, are ‘presumptively open.’ [Citation.]” (*Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal.App.4th 588, 596–597, 57 Cal.Rptr.3d 215.) As *NBC Subsidiary* explained, “the public has an interest, in *all* civil cases, in observing and assessing the performance of its public judicial system, and that interest strongly supports a general right of access in ordinary civil cases.” (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1210, 86 Cal.Rptr.2d 778, 980 P.2d 337.) “